

25STCV29457 25STCV29457

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-08-11

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C732%2C08%2F11%2F2026

Source SHA-256: 7a6d11c8aef55d95fe55c06348a5ff47d9adc2dc6cc03ede4c4f5ec7962b7ba5

Case Number: 25STCV29457 Hearing Date: August 11, 2026 Dept: 732

Andrey Brilkov, et al. v. Purushottama, LLC., et al.

Tuesday, August 11, 2026

CASE NUMBER: 25STCV29457

UNOPPOSED

Plaintiffs' Motion

for Summary Judgment of the Complaint

Facts:

This is an action for quiet title and declaratory relief. The Complaint alleges as follows. Plaintiffs Andrey Brilkov and Kirill Ponomarenko ("Plaintiffs") entered into a joint venture agreement with Defendants Purushottama, LLC ("Purushottama") and Dmitri Ermolaev ("Ermolaev") (collectively, "Defendants") whereby Plaintiffs would contribute funds for the purchase of property and oversee its renovation for later sale, with title to be held in the meantime by Purushottama, before being transferred to a Delaware entity to be created for the purpose of holding title. (Complaint ¶¶ 14–23.) After the property was purchased, Plaintiffs began carrying out renovations, but Defendants failed to make payments on the property and have failed to transfer title as agreed. (Complaint ¶¶ 23–25.) Plaintiff learned that Defendants had depleted investment funds for their own purposes, causing construction to halt. (Complaint ¶¶ 25–29.)

Procedural History: Plaintiffs

filed the Complaint on August 8, 2025, alleging four causes of action:

1.

Breach of Joint Venture Agreement

2.

Breach of Fiduciary Duty

3.

Quiet Title

4.

Declaratory Relief

On

March 5, 2026, the court granted Plaintiffs' motion to compel responses to discovery and motion to deem matters admitted against Ermolaev.

On

April 1, 2026, the court overruled Ermolaev's demurrer to all causes of action in the Complaint.

On

April 14, 2026, Ermolaev filed his verified Answer.

On

May 14, 2026, Plaintiffs filed the present motion for summary judgment and dismissed their first and second causes of action without prejudice.

As

of August 5, 2026, no opposition to the motion had been filed.

Jury

trial is set for August 10, 2027.

Analysis

I.

SUMMARY JUDGMENT

A party may move for summary judgment “if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc. § 437c, subd. (a).) “[I]f all the evidence submitted, and all inferences reasonably deducible from the evidence and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law,” the moving party will be entitled to summary judgment. (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc. § 437c, subd. (f)(2).)

The moving party bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.)

“A plaintiff ... has met that party’s burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action.” (Code Civ. Proc. § 437c, subd. (p)(1).)

“Once the plaintiff ... has met that burden, the burden shifts to the defendant ... to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant ... shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (Code Civ. Proc. § 437c, subd. (p)(1).)

Third Cause of Action for Quiet Title

This action concerns the real property commonly known as 5945 Tobias Avenue, Van Nuys, California 91411 (the “Property”).

Plaintiffs’ quiet title claim seeks a judgment finding that Plaintiffs “hold two-thirds interest in the Property with one-third interest therein remaining in defendant Purushottama.” (Complaint, ¶ 52.) They allege that they hold such interest “by virtue of the joint venture and agreement

between the parties relating to the construction project and purchase of the Property.” (Complaint, ¶ 53.)

Plaintiffs now move for a summary judgment order finding that “title and interest to the Property should be allocated as two-thirds for Plaintiffs and the remaining one-third for defendant-in-default Purushottama, LLC [not Defendant Ermolaev].” (Motion, p. 11:1-4.)

“To prevail on a quiet title claim, a plaintiff must establish title to the property in dispute. ([Code Civ. Proc.] § 761.020; [citation].) ‘The plaintiff may recover only upon the strength of his or her own title ... and not upon the weakness of the defendant’s title.’” (Thompson v. Ioane (2017) 11 Cal.App.5th 1180, 1195.)

The court finds that Plaintiffs have met their initial burden of establishing title to the Property through Defendant Ermolaev's verified Answer and the admitted Requests for Admission, Set One (“RFAs”). (St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 776 “[A] deemed admitted order establishes, by judicial fiat, that a nonresponding party has responded to the requests by admitting the truth of all matters contained therein”]; Evidence in Support of Motion for Summary Judgment, filed May 15, 2026, Declaration of Jay Cohen, 5, 6; Exh. A – a copy of the court’s March 5, 2026 Minute Order granting Plaintiff’s RFA motion; Exh. B – a copy of the RFAs.)

In his verified Answer, Ermolaev testified as follows:

“Responding Defendant admits that Plaintiffs, collectively, may claim a two-thirds (2/3) interest consistent with the alleged structure of one-third (1/3) ownership per participant” (Verified Answer, filed April 14, 2026, p. 6:24-27.)

Ermolaev also admitted to the following facts pursuant to the RFA order. He is the managing member of Purushottama. (RFA No. 1.) At all relevant times, he was the authorized representative of Purushottama and acted on its behalf. (Id. No. 2.) He commingled and treated Purushottama’s funds as his own and for his own benefit. (Id. Nos. 3, 4, 5.) He entered into an agreement with Plaintiffs to purchase 5945 Tobias Avenue, Van Nuys, California 91411 (the “Property”). (Id. Nos. 6, 7.) Under the agreement, the parties agreed to purchase, fix, and flip the Property for profit. (Id. No. 8.) Plaintiffs deposited \$30,000 into

Purushottama's bank account to purchase the Property, and escrow was opened pursuant to the agreement. (Id. Nos. 9, 10.) Ermolaev agreed to split any profits yielded from the sale of the Property with Plaintiffs. (Id. No. 13.) He also agreed that Purushottama will only maintain title to the Property temporarily. (Id. No. 19.) Plaintiffs own 2/3 interest in the Property, and Purushottama owns 1/3 interest. (Id. Nos. 20, 21.)

Therefore, the burden shifts to Ermolaev to show that triable issues of material fact exist as to the quiet title claim.

Ermolaev has failed to meet that burden by failing to file an opposition. However, even if he opposed the motion, he would not be able to meet his burden based on the admitted RFAs.

Notwithstanding the above findings, a motion for summary judgment can only be granted if there are no triable issues of material fact as to all claims in the Complaint. Therefore, Plaintiffs must also prove their declaratory relief claim in order to obtain summary judgment.

Fourth Cause of Action for Declaratory Relief

"Code of Civil Procedure section 1060, which governs actions for declaratory relief, provides:

'Any person interested under a written instrument ..., or under a contract, or who desires a declaration of his or her rights or duties with respect to another ... may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action ... for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract.'" (California Public Records Research, Inc. v. County of Yolo (2016) 4 Cal.App.5th 150, 185.)

Here, Plaintiffs brought their declaratory relief claim, alleging the following. "[A]n actual controversy now exists between Plaintiffs and Defendants with respect to ownership of the Property." (Complaint ¶ 58.) "Plaintiffs assert that they have a two-thirds ownership interest in the Property by virtue of the joint venture and agreement with Defendants to purchase the Property together and fix and flip it for profits (one third each – Plaintiffs and

Dima's [i.e., Ermolaev's] entity Purushottama)." (Complaint ¶ 59.) "Plaintiffs are informed and believe that Defendants deny Plaintiff's claims and contend that the Property only belongs to Purushottama." (Complaint ¶ 60.) "Accordingly, because of the above alleged controversy, Plaintiffs seek a judicial determination as to their rights and ownership interest in the Property." (Complaint ¶ 61.)

"Summary judgment is appropriate in a declaratory relief action when only legal issues are presented for the court's determination. [Citation.] The defendant's burden in a declaratory relief action 'is to establish the plaintiff is not entitled to a declaration in its favor. It may do this by establishing (1) the sought-after declaration is legally incorrect; (2) undisputed facts do not support the premise for the sought-after declaration; or (3) the issue is otherwise not one that is appropriate for declaratory relief.' [Citation.]" (California Public Records Research, Inc. v. County of Yolo, supra, 4 Cal.App.5th at p. 185.)

Based on the evidence discussed, including the admitted RFAs, the court finds that Plaintiffs have met their initial burden of proving their declaratory relief claim, and that Ermolaev has failed to meet his burden by failing to file an opposition.

Therefore, the court grants Plaintiffs' request for summary judgment of the Complaint.

Superior Court of California

County of Los Angeles

Department 732

andrey
brilkov, et al.,

Plaintiff

v.

PURUSHOTTAMA, LLC, et al.,

Defendants.

Case No.:

25STCV29457

Hearing Date: August 11, 2026

[TENTATIVE] RULING RE:

PLAINTIFFS ANDREY BRILKOV AND KIRILL PONOMARENKO'S
MOTION FOR SUMMARY JUDGMENT

Plaintiffs

Andrey Brilkov and Kirill Ponomarenko's Motion for Summary Judgment is GRANTED. Plaintiffs are ordered to file and serve a proposed judgment within 10 days of this ruling.

Plaintiffs to give notice.

Dated: August 11, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court